

Item No.01:

**BEFORE THE NATIONAL GREEN TRIBUNAL
SOUTHERN ZONE, CHENNAI**

Thursday, the 10th day of September, 2026.

[Through Physical Hearing (Hybrid Option)]

Original Application No.221 of 2025(SZ)

IN THE MATTER OF:

Subhash S

Gallery
Poundkadavu
Valiyaveli-PO
Thiruvananthapuram-695021, Kerala.

...Applicant(s)

Versus

1) State of Kerala

Represented by Chief Secretary
Government Secretariat
Thiruvananthapuram-695001, Kerala.

2) State Police Chief,

Police Headquarters
Vazhuthacaud
Thiruvananthapuram-695010, Kerala.

3) District Magistrate

Collectorate
Civil Station
Kudappanakkunnu
Thiruvananthapuram-695043, Kerala.

4) Chairperson

Kerala State Pollution Control Board,
Pattom
Thiruvananthapuram-695004, Kerala.

5) Central Pollution Control Board

Represented by the Member Secretary,
Parivesh Bhawan,
East Arjun Nagar,
Delhi – 110 032.

[R5 Suo Motu impleaded as per order dated 04.11.2025]

...Respondent(s)

For Applicant(s): Mr. Subhash. S. (*Party-In-Person*).

For Respondent(s): Mr. Jerin Asher Sojan for R1 to R3.
Mrs. V.K. Rema Smrithi for R4.
Mr. R. Thirunavukarasu for R5.

Judgment reserved on: 19th August, 2026.

CORAM:

HON'BLE Smt. JUSTICE PUSHPA SATHYANARAYANA, JUDICIAL MEMBER

HON'BLE Dr. PRASHANT GARGAVA, EXPERT MEMBER

J U D G M E N T

Delivered by Dr. Prashant Gargava, Expert Member

1. The present **Original Application [O.A. No. 221 of 2025 (SZ)]** has been filed by the Applicant, being aggrieved by the persistent noise pollution caused by the unauthorised use of horn-type loudspeakers, which has adversely affected the work of the Applicant, who resides in an artist's studio/residence at Poundkadavu, Thiruvananthapuram.

2. The Applicant submits that an unauthorised Guru Mandiram has been constructed, without obtaining the requisite permission from the concerned Panchayat/Corporation, in **Survey No. 168/2, in Poundkadavu**, in close proximity to the Applicant's residence. The said Guru Mandiram is allegedly being operated with the unauthorised use of horn-type loudspeakers, resulting in persistent and excessive noise pollution and causing unnecessary hardship and health problems for the applicant and the public.

3. The Applicant further submits that he has been continuously approaching and submitting complaints before the concerned authorities since the year 2002, seeking appropriate action against the said violations. However, despite repeated complaints and representations, no effective or lasting remedial action has been taken, and the nuisance continues unabated.

4. The Applicant further alleges that the State of Kerala is purposefully not implementing the **Environment Compensation Regime of the Hon'ble Tribunal**, intended to ensure effective enforcement of **Rule 4(2) of the Noise Pollution (Regulation and Control) Rules, 2000**, framed

under the **Environment (Protection) Act, 1986**. The Applicant submits that such inaction reflects lack of accountability and failure in protecting the health and welfare of citizens.

5. In view of the above, the applicant has approached this Tribunal with the following prayers:

- 1) Implement the Environment Compensation Regime of the Hon'ble National Green Tribunal to enforce Rule 4(2) of the Noise Pollution (Regulation and Control) Rules, 2000 of the Environment (Protection) Act, 1986 strictly in letter and spirit immediately, or Pay levy @ Rs. 10 lakhs per month till it is implemented.*
- 2) Remove all Horn-type loudspeakers/hidden in boxes, fixed permanently all over the State, and ensure loudspeakers or public address systems shall not be used at night between 10.00 p.m. and 6.00 a.m. under the provisions of the Noise Pollution (Regulation and Control) Rules, 2000, Section 5(1) and (2).*
- 3) Ensure the noise level in residential areas is 55 decibels in the daytime and 45 decibels at night time as specified in the Schedule of Noise Pollution (Regulation and Control) Rules, 2000. As per the Noise Pollution (Regulation and Control) Rules, 2000 of the Environment (Protection) Act, 1986, responsibilities are vested with State Pollution Control Boards to ensure the noise levels in any area/zone shall not exceed the ambient air quality standards in respect of noise as specified in the Schedule.*
- 4) Allow Rs.1 lakh or suitable compensation to the applicant for the hardship, mental agony, and injuries suffered all these 23 long years and for continuing the fight against this menace after losing a career in the Art field.*

6. Insofar as Prayer No. 4, seeking compensation to the applicant, is concerned, no assessment of the extent of damage or impact, if any, has been placed on record. The remaining three prayers, namely, Prayer Nos. 1, 2 and 3, pertain to the implementation of the environmental compensation regime and the provisions of the Noise Pollution (Regulation and Control) Rules, 2000. Accordingly, we proceed to consider Prayer Nos. 1, 2 and 3 together.

7. Upon notice, the Respondents, through their respective counsel, entered appearance, made their submissions, and filed their respective reports.

8. The **Respondent No. 4/Kerala State Pollution Control Board (KSPCB)** filed its **report dated 02.07.2026**, and submits that, based on Hon'ble NGT orders in O.A. Nos. 519/2016(PB), 496/2018(PB), 196/2018(PB), 197/2018(PB), the Chairman CPCB issued direction **No. A-14011/1/2021-MON/1116, dated 27.04.2021** to KSPCB to direct all designated Authorities of the State to implement scale of compensation for violation of the Noise Pollution (Regulation and Control) Rules, 2000 as accepted by Hon'ble NGT. Subsequently, similar direction vide **PCB/HO/EE3/NGT/OA No. 681/2018/24/19(M), dated 19.05.2021** was issued by KSPCB to the Inspector General of Police.

9. It is also submitted that as per decision taken in the meeting chaired by Additional Chief Secretary Environment on **25.11.2022**, it was instructed to prepare a draft Scheme enabling smooth implementation of Compensation Regime during violations of Noise Rules, 2000 and the Environment Department shall issue Government Order after getting the draft vetted by the Law Department. The Board has submitted the draft scheme regarding implementation of environmental compensation regime for noise pollution to Government vide letter dated **06.01.2023**, the draft scheme is under scrutiny and consideration of the State Government. The Board vide letter dated **11.01.2025** has again brought the matter to the kind notice of the Government.

10. It is also submitted that the Government of Kerala vide letter No. ENVT-A3/241/2019-ENVT dated 19.06.2025 has instructed to submit the details of the scheme implemented by the States of Tripura and West Bengal regarding the collection of environmental compensation in Noise Pollution based on the principle of 'Polluter Pays Principle' as mentioned in the order of the Hon'ble National Green Tribunal in case No. O.A. No. 519/2016. The Board has issued letters to Tripura State Pollution Control Board (**TSPCB**) and West Bengal State Pollution Control Board (**WBSPCB**) vide letter dated **29.06.2025** requesting to provide the details called for by the Government.

11. The Board vide letter dated **07.01.2026** has requested Central Pollution Control Board, Head Office and Regional Directorate Bengaluru to provide necessary guidance on whether environmental compensation scheme related to noise pollution has been implemented in any of the States in India. Also reminder letter dated **07.01.2026** was served on TSPCB and WSPCB requesting the information.

12. The **report dated 07.04.2026 of the Central Pollution Control Board (CPCB) [Respondent No. 5]** states that the CPCB prepared a Report on "Scale of Compensation to be Recovered for Violation of Noise Pollution (Regulation and Control) Act, 2000" in compliance of Hon'ble NGT orders dated 01.08.2019 and 15.11.2019 in O.A. No. 519/2016, in the matter of *Hardeep Singh & Ors. Vs. SDMC & Ors.*

13. It is also stated that in compliance to the directions of Hon'ble NGT in O.A. No. 519/2016, O.A. No. 496/2018, O.A. No. 196/2018 and O.A. No. 197/2018 vide order dated 11.08.2020, CPCB vide letter No. A-14011/1/2021-MON, dated 27th April, 2021 has issued Directions to all the State Pollution Control Boards (SPCBs)/Pollution Control Committees (PCCs) including Kerala State Pollution Control Board under Section 5 of the Environment (Protection) Act, 1986 that SPCB shall issue direction to designated authorities of the State to implement scale of compensation for violation of Noise Pollution (Regulation and Control), Rules, 2000 as accepted by Hon'ble NGT.

14. The CPCB has also submitted relevant rules of Noise Pollution (Regulation and Control), Rules 2000, as below:

"As per rule 2(c) of Noise Pollution (Regulation and Control), Rules, 2000, "Authority" means and includes any authority or officer authorized by the Central Government, or as the case may be, the State Government in accordance with the laws in force and includes a District Magistrate, Police Commissioner, or any other officer not below the rank of the Deputy Superintendent of Police designated for the maintenance of the ambient air quality standards in respect of noise under any law for the time being in force.

As per rule 7 (1) of Noise Pollution (Regulation and Control), Rules, 2000, a person may, if the noise level exceeds the ambient noise standards by 10 dB (A) or more given in the corresponding columns against any area/zone or, if there is a violation of any provision of these rules regarding restrictions imposed during night time, make a complaint to the authority.

As per rule 7 (2) of Noise Pollution (Regulation and Control), Rules, 2000, the authority shall act on the complaint and take action against the violator in accordance with the provisions of these rules and any other law in force.”

15. It is further submitted that Environment Protection Act, 1986 has been amended vide The Jan Vishwas (Amendment of Provisions) Act, 2023, wherein penalty provisions have been inserted which are to be considered/levied by Adjudicating Officer concerned as provided at Section 15 (c). Further, the Environment Protection (Manner of Holding Inquiry and Imposition of Penalty) Rules, 2024 has been notified by the Ministry of Environment, Forest & Climate Change (**MoEF&CC**) and MoEF&CC has appointed the Secretary in-charge, Environment Department of the State Government/Union Territory Administration to perform the functions of Adjudicating Officer in their respective jurisdiction.

16. The CPCB has also submitted that, the Kerala SPCB vide letter No. KSPCB/349/2022-EE-3, dated 12.08.2024, provided the list of authorities or officers authorized in the State of Kerala which is said to be available on the CPCB website at: <https://cpcb.nic.in/displaypdf.php?id=Tm9pc22UtU3RhbmBmRhcmdzL0F1dGhvcml0aWVzL2Rpc3BsYXIQREYucGRm>.

17. Upon consideration of the foregoing submissions and materials placed on record, the following facts and findings emerge:

17.1 The Rule 7(2) of the Noise Pollution (Regulation and Control) Rules, 2000 mandates that the authority shall act upon a complaint relating to noise pollution and take appropriate action against the violator in accordance with the provisions of the said Rules and any

other law for the time being in force. The term “authority” is defined under Rule 2(c) of the said Rules to mean any authority or officer authorised by the Central Government or, as the case may be, the State Government, in accordance with the laws in force. The definition also includes a District Magistrate, Commissioner of Police, or any other officer not below the rank of Deputy Superintendent of Police.

17.2 Accordingly, the State of Kerala has identified and designated the authorities and officers authorised to exercise the powers contemplated under the said Rules. The details thereof are stated to have been communicated by the State to the Central Pollution Control Board (CPCB) on **12.08.2024** and are available on the CPCB website.

17.3 Pursuant to the orders dated **01.08.2019** and **15.11.2019** passed by this Hon’ble Tribunal in O.A. No. 519/2016, the CPCB prepared a report titled “Scale of Compensation to be Recovered for Violation of Noise Pollution (Regulation and Control) Rules, 2000.” Thereafter, on **27.04.2021**, the CPCB issued directions under Section 5 of the Environment (Protection) Act, 1986 to all State Pollution Control Boards (SPCBs) and Pollution Control Committees (PCCs), including the Kerala State Pollution Control Board (KSPCB), directing them to issue appropriate directions to the designated authorities of their respective States for implementation of the prescribed scale of environmental compensation for violations of the Noise Pollution (Regulation and Control) Rules, 2000. Pursuant thereto, the KSPCB issued directions dated **19.05.2021** to the Inspector General of Police.

17.4 Subsequently, on **25.11.2022**, it was decided that the KSPCB would prepare a draft Scheme to facilitate the effective and smooth implementation of the environmental compensation regime for violations of the Noise Pollution (Regulation and Control) Rules, 2000. It was further contemplated that the Environment Department would issue the requisite Government Order

after vetting of the draft Scheme from the Law Department. Accordingly, the Board prepared the draft Scheme and submitted the same to the State Government on **06.01.2023**. However, despite the passage of more than three years, the said Scheme continues to remain under scrutiny and consideration of the State Government. The KSPCB, by communication dated **11.01.2025**, once again brought the matter to the notice of the Government.

17.5 Thereafter, the Government of Kerala/KSPCB sought details regarding the schemes for collection and recovery of environmental compensation for noise pollution reportedly implemented in the States of Tripura and West Bengal. The KSPCB also sought information from the CPCB regarding the schemes, if any, implemented by other States.

18. It may be relevant to refer to the order dated 03.07.2017 passed by the National Green Tribunal, Principal Bench, New Delhi, in O.A. No. 59 of 2017 (PB), Arshita Khatri (Minor) & Ors. v. DAV Public School & Ors., wherein the Tribunal made, inter alia, the following observations:

"21.Under the aforesaid Rules of 2000, a complaint has to be made to the authority, which means and includes any authority or officer authorized by the Central Government, or as the case may be, the State Government in accordance with law in force. It includes the District Magistrate, Police Commissioner or any other officer not below the rank of Deputy Commissioner of Police designated for the maintenance of ambient air quality standards in respect of noise under the law for the time being in force. The ambient air quality standards in respect of noise be areas/zones such as specified in the Schedule annexed to the Rules of 2000. It shall be the responsibility of the authority for enforcement of noise pollution control measures and due compliance of ambient air quality standards in respect of noise."

19. This Tribunal has also observed in the **O. A. No.89 of 2025(SZ)** that if any person is aggrieved by alleged

violation of noise standards, it is open to such person to approach the designated authority under the Noise Pollution Rules, 2000, who shall conduct measurement and take action in accordance with law.

20. The enforcement of ambient air quality standards in respect of noise lies with the designated authority under the Noise Pollution (Regulation and Control) Rules, 2000. The designated authority is also responsible to act on the complaint and take action against the violator in accordance with the provisions of these rules and any other law in force.

21. The finalisation of the environmental compensation regime and issuance of directions by the CPCB in April 2021, followed by the preparation of the requisite scheme by the KSPCB and its submission to the Government of Kerala in January 2023, and non-implementation of the Scheme for more than three years thereafter clearly reflects a lack of urgency and seriousness on the part of the concerned authorities in taking effective measures to curb and mitigate noise pollution.

22. Further, despite the Noise Rules clearly delineating the respective authorities and their responsibilities, and notwithstanding the various directions issued by this Tribunal from time to time, the State of Kerala has not been able to take effective and concrete measures to address complaints relating to violations of the Noise Rules. The position in other States may also warrant similar examination to assess the effectiveness of the existing enforcement mechanism including framework for implementing environmental compensation.

23. It is well established that the noise pollution is not merely a source of inconvenience or annoyance, but constitutes a significant environmental and public health concern. Prolonged exposure to excessive noise may result in sleep disturbance, stress, impaired hearing and hypertension, and may adversely affect mental health and overall quality of life. The adverse effects of noise pollution extend beyond auditory impairment and may have broader implications for physical and mental well-being. These effects are particularly significant

where exposure is persistent or recurrent, including during night-time hours, when uninterrupted sleep and tranquillity are essential to maintaining physical and mental health.

24. In light of the foregoing observations and discussions, we deem it appropriate to issue the following directions:

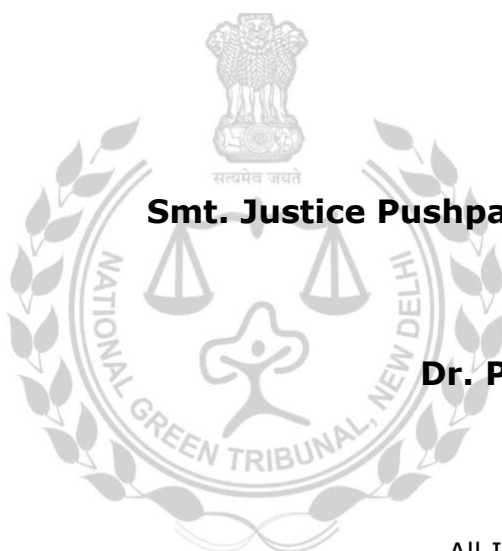
- (i) The State of Kerala shall finalize and operationalize its scheme/framework for implementing environmental compensation within two months.
- (ii) All other States and Union Territories in the Southern Region, namely Andhra Pradesh, Karnataka, Tamil Nadu, Telangana, Puducherry, and Lakshadweep shall also implement their respective environmental compensation schemes within two months, if they have not already done so.
- (iii) The respective State Pollution Control Boards and Pollution Control Committees (SPCBs/PCCs) shall ensure that designated authorities receive necessary technical assistance for noise measurements, either directly from the Board or through authorized, accredited laboratories.
- (iv) The Southern States and Union Territories shall take immediate measures, in accordance with law, to address and resolve complaints regarding violations of the Noise Pollution Rules.
- (v) To ensure effective enforcement, the Additional Chief Secretary or Principal Secretary of the Department of Environment in each state shall periodically monitor the implementation of the Noise Pollution Rules, at least once every six months, and ensure necessary corrective measures.
- (vi) The Central Pollution Control Board shall review the implementation status of the environmental compensation schemes and the enforcement of Noise Pollution Rules across these States after two months,

and subsequently file a comprehensive status report within the following month.

(vii) The concerned SPCBs and PCCs shall file their compliance reports within three months.

(viii) The Registry is directed to send copy of the order to the Additional Chief Secretary or the Principal Secretary as well as the Chairperson of State Pollution Control Boards/Pollution Control Committees of all the States/UTs of the Southern Region.

25. The Original Application **[O.A. No. 221 of 2025 (SZ)]** is accordingly disposed of with the aforementioned directions.



Sd/-
Smt. Justice Pushpa Sathyanarayana, JM

Sd/-
Dr. Prashant Gargava, EM

Internet – Yes/No

All India NGT Reporter – Yes/No

O.A. No.221/2025 (SZ)
10th September, 2026. RJ.

NGT